

CHAPTER 63*Housing (Scotland) Act, 1952***ARRANGEMENT OF SECTIONS****Section**

1. Increase of Exchequer and local authorities' contributions in respect of housing accommodation provided by local authorities.
2. Increased rates of Exchequer contributions payable in respect of housing accommodation provided for agricultural population.
3. Schemes for the provision, otherwise than by local authorities, of housing accommodation for the agricultural population.
4. Exchequer contributions to expenses of local authorities under schemes of assistance.
5. Transitional provisions.
6. Variation of conditions applicable to dwelling in respect of which an improvement grant has been made.
7. Increase of minimum payments into housing repairs account.
8. Amendment of principal Act with respect to the making of certain orders.
9. Minor and consequential amendments.
10. Financial provisions.
11. Short title, citation, construction and extent.

An Act to make fresh provision for the making of contributions out of the Exchequer and by local authorities in respect of housing accommodation provided in Scotland; to amend the provisions of the Housing (Scotland) Act, 1950, relating to the conditions applying to dwellings in respect of which improvement grants have been made and to the recording in the Register of Sasines of notices with respect to such dwellings, to the payments to be made by a local authority into the housing repairs account, and to the making of certain orders; and for purposes connected with the matters aforesaid. [30th October 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- 1.—(1) For the purpose of increasing, in respect of any new house, or accommodation deemed to be a new house, completed after the twenty-eighth day of February, nineteen hundred and fifty-two, by way of housing accommodation provided by a local authority in accordance with proposals approved by the Secretary of State, the contributions payable by the Secretary of State and by the local authority under Part VI of the principal Act, the provisions of that Part of that Act shall have effect in relation to any such new house, or accommodation deemed to be a new house, subject to the amendments specified in this section.
- Increase of
Exchequer
and local
authorities'
contributions
in respect
of housing
accommodation
provided
by local
authorities.

(2) Subject to the next following section of this Act, in section eighty-four of the principal Act for subsection (2) (which specifies the annual Exchequer contributions payable in respect of new houses) there shall be substituted the following subsection—

“(2) An annual contribution under this section shall be—

- (a) in respect of a house of three apartments, the sum of thirty-nine pounds fifteen shillings ;
- (b) in respect of a house of four apartments, the sum of forty-two pounds five shillings ; and
- (c) in respect of a house of five apartments, the sum of forty-six pounds fifteen shillings.”

(3) In subsection (7) of the said section eighty-four (which subsection specifies the annual Exchequer contribution payable in respect of each part of a hostel designed for separate occupation by single persons) for the words “ the amount of the annual contribution shall be eleven pounds ” there shall be substituted the words “ the amount of the annual contribution shall be twenty pounds ”.

(4) In section ninety-seven of the principal Act for subsection (2) (which specifies the annual contributions to be made by a local authority to whom Exchequer contributions are payable under section eighty-four of that Act in respect of housing accommodation provided by them) there shall be substituted the following subsection—

“(2) An annual contribution under this section shall be—

- (a) in respect of a house of three apartments, the sum of thirteen pounds five shillings ;
- (b) in respect of a house of four apartments, the sum of fourteen pounds five shillings ; and
- (c) in respect of a house of five apartments, the sum of fifteen pounds ten shillings ;

together with in every case an additional sum equal to one half of any additional contributions which the Secretary of State has undertaken to make under subsection (3) and subsection (4) of the said section eighty-four ; and

- (d) in respect of accommodation deemed to be a new house in respect of which the Secretary of State has undertaken to make a contribution under subsection (7) of the said section eighty-four, a sum equal to one third of such contribution.”

2.—(1) If the Secretary of State thinks fit so to determine in the case of any house which a local authority have provided by way of housing accommodation for the agricultural population and in respect of which the Secretary of State is required to undertake to make and to make an annual contribution under section eighty-four of the principal Act, the said section eighty-four shall have effect in relation to that house as if in lieu of the subsection directed by the foregoing section of this Act to be substituted for subsection (2) of the said section eighty-four there were substituted the following subsection—

Increased rates of Exchequer contributions payable in respect of housing accommodation provided for agricultural population.

“(2) An annual contribution under this section shall be—

- (a) in respect of a house of three apartments, the sum of fifty-one pounds fifteen shillings ;
- (b) in respect of a house of four apartments, the sum of fifty-four pounds five shillings ; and
- (c) in respect of a house of five apartments, the sum of fifty-eight pounds fifteen shillings.”

(2) In paragraph (b) of subsection (3) of section seventy-three of the principal Act (which requires certain houses to be reserved for the agricultural population) the reference to section eighty-five of that Act shall include a reference to section eighty-four thereof as amended by this section.

3.—(1) A local authority may, and if so required by the Secretary of State shall, submit to the Secretary of State a scheme or schemes for assisting the provision of housing accommodation in new houses for the agricultural population, and on approval by the Secretary of State of any scheme so submitted a local authority may in accordance therewith give assistance in the manner hereinafter provided.

Schemes for the provision, otherwise than by local authorities, of housing accommodation for the agricultural population.

(2) Assistance under this section shall be given by way of payment on the completion of the house of a lump sum not exceeding either—

- (a) one half of the cost of the house ; or
- (b) two hundred and forty pounds in the case of a house containing three apartments, or three hundred pounds in the case of a house containing more than three apartments.

(3) No assistance under this section shall be given in respect of a house unless the house contains at least three apartments of superficial areas not less than such areas as may be specified in the scheme of assistance, and such conveniences as may be so specified.

(4) The rules contained in the Ninth Schedule to the principal Act shall apply to applications for, and the giving of, assistance under this section as they apply to applications for, and the giving of, assistance under section one hundred of that Act, with the omission, however, in rule 1 of the words "and of the house or other premises which it is to replace".

(5) No assistance shall be given under this section in respect of any house in respect of which a grant has been made under section one of the Hill Farming Act, 1946, or under section seventy-seven of the Agriculture (Scotland) Act, 1948.

(6) A local authority may in any case refuse to give assistance under this section on any grounds which seem to them sufficient.

(7) Where a local authority refuse to give assistance under this section they shall, if the applicant so requests, notify him in writing of the grounds of their refusal.

(8) The provisions of sections one hundred and one to one hundred and three of the principal Act (which relate to the conditions applying to houses in respect of which assistance has been given under section one hundred of that Act, to the right of an owner to repay such assistance, and to the rights and obligations of tenants of agricultural holdings, and of landholders and statutory small tenants, in relation to such assistance) shall apply in relation to a house in respect of which assistance has been given under this section and to assistance so given as they apply in relation to a house in respect of which assistance has been given under the said section one hundred and to assistance given under that section, subject, however, to the following modifications—

(a) for any reference to section one hundred of the principal Act there shall be substituted a reference to this section ;
and

(b) for the conditions specified in subsection (3) of the said section one hundred and one as applying to a house in respect of which assistance has been given there shall be substituted the conditions that the house shall not be occupied otherwise than by a member of the agricultural population and that it shall not be let at a rent exceeding that fixed by the local authority at the time when they approved the application for assistance.

(9) In relation to a house in respect of which assistance has been given under this section, being a house which is for the time being occupied in pursuance of a contract of service by a member of the agricultural population, section one hundred and one of

the principal Act shall have effect as if there were included among the conditions specified in that section the following condition, that is to say, that if the contract is determined—

- (a) by less than four weeks' notice given by the employer ;
- (b) by dismissal of the employee without notice ; or
- (c) by the death of either party ;

the employer or his personal representative shall permit the employee (or, in the case of his death, any person residing with him at his death) to continue to occupy the house free of charge from the determination of the contract until the expiration of a period of four weeks, beginning with the date on which the notice is given or, if the contract is determined otherwise than by notice, with the date on which it is determined.

In this subsection "occupied", means occupied otherwise than by a tenant ; and "occupy", shall be construed accordingly.

4.—(1) The Secretary of State shall, subject to the provisions of this Act, make or undertake to make a contribution towards the expense incurred by a local authority in giving assistance under section three of this Act.

Exchequer contributions to expenses of local authorities under schemes of assistance.

(2) A contribution under the foregoing subsection shall be a sum equal—

- (a) in any case where assistance is given in respect of a house provided in the Highlands and Islands, to seven-eighths, and
- (b) in any other case where assistance is given, to three-quarters,

of the annual loan charges referable to the amount paid by way of assistance payable annually for the period of forty financial years beginning with the year in which the house in respect of which the assistance was given was completed.

For the purposes of this subsection the annual loan charges referable to the amount paid by way of assistance shall (whatever may be the manner in which the local authority have provided or intend to provide the money requisite for giving the assistance) be the annual sum which, in the opinion of the Secretary of State, would fall to be provided by the local authority for the payment of interest on, and the repayment of, an amount equal to the amount paid by way of assistance, of borrowed money the period for the repayment of which is forty years.

(3) The provisions of subsections (3) to (5) of section one hundred and four of the principal Act (which subsections provide for the making of financial adjustments in the event of a breach of the conditions applying to a house in respect of which assistance has been given, or of the repayment of such assistance or of such a house becoming vested in the local authority) shall

apply in relation to a house in respect of which assistance has been given under section three of this Act and to sums paid by way of such assistance as they apply in relation to a house in respect of which assistance has been given under section one hundred of the principal Act and to sums paid by way of assistance under that section.

**Transitional
provisions.**

5.—(1) After the commencement of this Act no contributions shall be payable under subsection (2) or (7) of section eighty-four (as originally enacted) or under section eighty-five of the principal Act in respect of a new house or accommodation deemed to be a new house completed after the twenty-eighth day of February, nineteen hundred and fifty-two.

(2) Where in accordance with proposals approved by the Secretary of State for the purposes of section eighty-four (as originally enacted) or section eighty-five of the principal Act a new house or accommodation deemed to be a new house has been completed after the said twenty-eighth day of February, then—

- (a) this Act shall, for the purposes of the payment of contributions in respect of the house or accommodation, be deemed to have come into operation immediately before the completion of the house or accommodation ;
- (b) the house or accommodation shall be deemed to have been provided in accordance with proposals approved for the purposes of the said section eighty-four as amended by this Act ; and
- (c) any sums which have before the commencement of this Act been paid out of moneys provided by Parliament in respect of the house or accommodation on account of contributions under subsection (2) or (7) of the said section eighty-four (as originally enacted) or the said section eighty-five shall be applied in or towards the satisfaction of any contributions which become payable in respect of the house or accommodation by virtue of the said section eighty-four as amended by this Act.

(3) No assistance shall be given under section one hundred of the principal Act in pursuance of an application made to a local authority after the commencement of this Act, and where a local authority have undertaken, in pursuance of an application made to them before the commencement of this Act, to give assistance under the said section one hundred in respect of the provision of a new house, and such house is completed after the commencement of this Act, the local authority may, if they see fit so to do, determine that the application shall be

treated as having been made and approved under section three of this Act; and if they so determine they shall recall and issue of new, with such modifications as may be necessary, the certificate of their approval under rule 2 of the Ninth Schedule to the principal Act; and the provisions of sections three and four of this Act shall thereupon apply in relation to the house accordingly.

6.—(1) For the purposes of paragraph (b) of subsection (1) of section one hundred and fourteen of the principal Act (which relates to the conditions to be observed with respect to a dwelling in respect of the provision or improvement of which an improvement grant has been made under section one hundred and eleven of that Act) the occupation of a dwelling by a member of the agricultural population in pursuance of a contract of service shall be treated as occupation by the employer under the contract.

Variation of conditions applicable to dwelling in respect of which an improvement grant has been made.

(2) In relation to a dwelling in respect of the provision or improvement of which an improvement grant has been made under section one hundred and eleven of the principal Act, being a dwelling which is for the time being occupied in pursuance of a contract of service by a member of the agricultural population, section one hundred and fourteen of that Act shall have effect as if there were included among the conditions specified in subsection (1) of that section the following condition, that is to say, that if the contract is determined—

- (a) by less than four weeks' notice given by the employer;
- (b) by dismissal of the employee without notice; or
- (c) by the death of either party;

the employer or his personal representative shall permit the employee (or, in the case of his death, any person residing with him at his death) to continue to occupy the dwelling free of charge from the determination of the contract until the expiration of a period of four weeks, beginning with the date on which the notice is given or, if the contract is determined otherwise than by notice, with the date on which it is determined.

(3) In this section "occupied," means occupied otherwise than by a tenant, and "occupy" and "occupation" (except in relation to occupation by an employer), shall be construed accordingly.

7. Section one hundred and forty of the principal Act (which requires every local authority to carry, in each financial year, to the credit of the housing repairs account in respect of each house, building and dwelling such amount as they may think proper, not being less than four pounds) shall have effect in relation to the first financial year beginning after the twenty-eighth day of February, nineteen hundred and fifty-two, and to each subsequent financial year with the substitution for the words "four pounds" of the words "eight pounds."

Increase of minimum payments into housing repairs account.

Amendment
of principal
Act with
respect to the
making of
certain orders.

8.—(1) The power to make orders conferred on the Secretary of State by any of the following provisions of the principal Act, that is to say—

- (a) subsections (3) and (4) of section eight (which relate to orders fixing the rate of interest on sums payable as a lump sum or by instalments respectively to a local authority in respect of the execution by them of works on insanitary buildings);
- (b) section fifty-one (which relates to orders modifying temporarily to meet exceptional conditions the provisions of the Fifth Schedule to the principal Act);
- (c) subsection (2) of section one hundred and forty-three (which relates to orders with respect to the constitution and procedure of the Scottish Housing Advisory Committee); and
- (d) in so far as the powers thereunder are exercised in relation to an order made under any of the provisions mentioned in the foregoing paragraphs, section one hundred and seventy-one (which relates to the variation and revocation of orders);

shall be, and shall be deemed always to have been, exercisable by statutory instrument.

(2) The power conferred on the Secretary of State by section fifty-nine of the principal Act to appoint a day or days for the purposes of Part IV of that Act shall be exercisable by order made by statutory instrument.

Minor and
consequential
amendments.

9.—(1) Subsection (6) of section one hundred of the principal Act (which subsection suspends, in relation to a house or premises in respect of the replacement of which assistance has been given under the said section, the provisions of Part II of the principal Act as to the cancelling or determination of certain undertakings and orders) is hereby repealed.

(2) For the purposes of sections one hundred and eleven to one hundred and twenty of the principal Act (which relate to the making of grants by local authorities to owners and certain other persons for the improvement of housing accommodation) a tenant, landholder or statutory small tenant shall be deemed to be the owner of any house, dwelling, building or other land on his farm or holding if in respect of the execution thereon of improvement works he would, on the termination of his tenancy, be entitled to compensation under the Agricultural Holdings (Scotland) Act, 1949, or the Small Landholders (Scotland) Acts, 1886 to 1931, as for an improvement; and where, by virtue of this subsection, a grant is made under the said section one hundred and eleven to a tenant, a landholder or a statutory small tenant, the provisions of subsections (1) to (3) of section one hundred

and three of the principal Act shall apply, subject to any necessary modifications, as they apply where assistance is given under section one hundred of that Act.

(3) Subsection (4) of section seventy-seven of the Agriculture (Scotland) Act, 1948, and subsection (6) of section one hundred and eleven of the principal Act (which subsections prohibit the giving of assistance under the said sections in respect of a house if assistance has been given in respect thereof under any of the enactments respectively mentioned in the said subsections) shall have effect as if the enactments so mentioned included, in the case of the said subsection (4), section one hundred and eleven of the principal Act and section three of this Act, and, in the case of the said subsection (6), section three of this Act.

(4) In subsection (5) of section one hundred and fourteen of the principal Act (which subsection requires a local authority who make an improvement grant in respect of a dwelling to cause to be recorded in the appropriate Register of Sasines a notice specifying the matters set out in that subsection) for the words "or the first instalment of an improvement grant" there shall be substituted the words "or, in a case where the improvement grant is payable partly in instalments as the work progresses and as to the balance after the completion of the works, the balance of the improvement grant".

(5) The power to approve the reconstruction of a building for the purposes of subsection (3) of section one hundred and eighty-four of the principal Act shall be exercisable by the local authority instead of the Secretary of State, and accordingly in the said subsection (3) for the words "the Secretary of State" there shall be substituted the words "the local authority".

(6) Part II of the Sixth Schedule to the principal Act (which specifies the enactments, contributions under which are payable subject to conditions) shall have effect with the addition, at the end, of the following words—

" 12. Section four of the Housing (Scotland) Act, 1952."

10.—(1) There shall be defrayed out of moneys provided by **Financial** Parliament— **provisions.**

(a) any expenses incurred by the Secretary of State under this Act; and

(b) any increase attributable to the provisions of this Act in the sums required or authorised to be so defrayed under the principal Act or under Part II of the Local Government Act, 1948.

(2) Any sums received by virtue of the provisions of this Act by the Secretary of State shall be paid into the Exchequer.

Short title,
citation,
construction
and extent.

11.—(1) This Act may be cited as the Housing (Scotland) Act, 1952, and shall be construed as one with the Housing (Scotland) Act, 1950; and that Act and this Act may be cited together as the Housing (Scotland) Acts, 1950 and 1952.

(2) In this Act the expression "the principal Act" means the Housing (Scotland) Act, 1950.

(3) Unless the context otherwise requires, references in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment including this Act.

(4) This Act shall extend only to Scotland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Hill Farming Act, 1946	9 & 10 Geo. 6. c. 73.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 51.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Agriculture (Scotland) Act, 1948	11 & 12 Geo. 6. c. 45.
Agricultural Holdings (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 75.
Housing (Scotland) Act, 1950	14 Geo. 6. c. 34.

CHAPTER 64

Intestates' Estates Act, 1952

ARRANGEMENT OF SECTIONS

PART I

AMENDMENTS OF LAW OF INTESTATE SUCCESSION

Section

1. Succession to estate of intestate leaving a surviving spouse.
2. Right of surviving spouse to have life interest redeemed.
3. Partial intestacies.
4. Reproduction of enactments in Administration of Estates Act, 1925, as amended.
5. Rights of surviving spouse as respects the matrimonial home.
6. Interpretation and construction.

PART II

AMENDMENTS OF INHERITANCE (FAMILY PROVISION) ACT, 1938

7. Amendments of Inheritance (Family Provision) Act, 1938.
8. Reproduction of Inheritance (Family Provision) Act, 1938, as amended.